

Court No. - 39

Case :- WRIT - C No. - 1611 of 2021

Petitioner :- Dhanpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

The case is adjourned for the day on the request of Sri Sirish Kumar Dwivedi, Advocate holding brief of Sri Anshul Kumar Singhal, learned counsel for the petitioner.

Let the matter be placed on 03.02.2021 in the additional cause list.

Order Date :- 22.1.2021

Saurabh

Court No. - 39

Case :- WRIT - C No. - 1611 of 2021

Petitioner :- Dhanpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

None has appeared on behalf of the petitioner to address the Court, even in the revised call. However, learned counsel Shri Abhishek Srivastava representing the respondents is present.

Let the case be placed in the week commencing 22.2.2021 in the additional cause list.

Order Date :- 3.2.2021

M. Tariq

Court No. - 39

Case :- WRIT - C No. - 1611 of 2021

Petitioner :- Dhanpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Lawyers are abstaining from work today.

Put up this case on 15.03.2021 in the additional cause list

Order Date :- 24.2.2021

P Kesari

Court No. - 3

Case :- WRIT - C No. - 1611 of 2021

Petitioner :- Dhanpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

List with previous papers.

Application is disposed of.

Order Date :- 3.3.2022

T.S.

Court No. - 21

Case :- WRIT - C No. - 1611 of 2021

Petitioner :- Dhanpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The specific case of the petitioner is that he has not been served with any provisional assessment order nor final assessment order and straightaway recovery certificate has been issued.

Learned Counsel for the Electricity Department is in receipt of instructions. He is granted a week's time to file counter affidavit.

List on 23.1.2023.

Order Date :- 12.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 1611 of 2021

Petitioner :- Dhanpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has challenge the recovery citation dated 7.11.2020 issued by respondent no.2 for recovery of electricity dues in a case of theft of electricity.

Sri Abhishek Srivastava, learned counsel appearing on behalf of Electricity Department states that the impugned recovery has been withdrawn and that fresh notice has been given to the petitioner to file objections. He states that the respondents will pass a fresh order as per the procedure prescribed under the Electricity Supply Code, 2005.

Having regard to the above submission, the instant petition stands disposed of in same terms with liberty to the respondent-Corporation to pass fresh order after following the procedure prescribed under the Electricity Supply Code, 2005.

Order Date :- 28.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)